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Sen. Pinkney
Reps. Neal, Phillips, Snyder-Hall, Bolden; Sen. Sokola

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 152

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO CRIMINAL IMPERSONATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 907B, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 907B. Criminal impersonation of a ~~police officer, firefighter, emergency medical technician (EMT), paramedic~~
4 ~~or fire police, law-enforcement official~~; class E felony, class C felony.

5 (a) A person is guilty of criminal impersonation of a ~~police officer, firefighter, emergency medical technician~~
6 ~~(EMT), paramedic or fire police~~ law-enforcement official when the person, intending to facilitate the commission of a
7 crime or while in immediate flight ~~therefrom~~ therefrom does either of the following:

8 (1) Intentionally and without lawful authority impersonates or otherwise pretends to be a ~~police officer,~~
9 ~~firefighter, emergency medical technician (EMT), paramedic or fire police; or~~ law-enforcement official.

10 (2) Without lawful authority does any act intended to create or reinforce a false impression that the person is a
11 ~~police officer, firefighter, emergency medical technician (EMT), paramedic or fire police.~~ law-enforcement official.

12 (b) Criminal impersonation of a ~~police officer, firefighter, emergency medical technician (EMT), paramedic or fire~~
13 ~~police~~ law-enforcement official is a class E felony, unless during the course of the commission of the crime, or while in
14 immediate flight therefrom, the person or another participant in the ~~crime~~ crime does either of the following, in which case
15 it is a class C felony:

16 (1) Causes physical injury to any person who is not a participant in the ~~crime; or crime~~.

17 (2) Commits a class A felony or class B felony as defined by this title or any sexual offense as defined by §
18 761(i) of this ~~title, in which case it is a class C felony.~~ title.

19 (c) Nothing in this section ~~shall preclude~~ precludes a separate charge, ~~conviction~~ conviction, or sentence for any
20 other crime.

21 (d) For purposes of this section:

22 (1) “Federal officer” means an officer or agent of the federal government who has the power to make arrests
23 under federal law.
24 (2) “Law-enforcement official” means a police officer, firefighter, emergency medical technician (EMT),
25 paramedic, fire police, or federal officer.

SYNOPSIS

This Act expands the criminal offense of impersonating a police officer, firefighter, emergency medical technician, paramedic, or fire officer to also prohibit impersonation of a federal officer.

This Act also makes technical corrections to conform to the Legislative Drafting Manual and creates a definition of “law-enforcement official,” which includes all of the state officers already explicitly referenced in the statute, as well as federal officers.